



United States
Attorney's Office
District of Massachusetts



Florida Pharmacy Pleads Guilty to Health Care Fraud and Agrees to Pay More Than \$1 Million Settlement

Friday, May 16, 2025

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

BOSTON – On May 13, 2025, a Florida-based pharmacy, OHM Pharmacy Services, aka “Benzer,” aka “Auburndale,” pleaded guilty to one count of health care fraud and was sentenced to one year of probation and ordered to pay restitution of \$82,000. As part of the global resolution, Benzer also agreed to pay \$1,018,000 to resolve False Claims Act violations.

According to OHM’s admissions in the global resolution of criminal charges and civil claims, the pharmacy dispensed Evzio, one of several naloxone products on the market indicated for use on an emergent basis in the case of opioid overdose. Due to Evzio’s high price, insurers (including Medicare Part D plans) frequently required that health care providers submit prior authorization requests before they approved coverage. OHM completed prior authorization forms in place of prescribing physicians, and in some instances OHM personnel signed the prior authorization forms without the physician’s authorization and submitted information to insurers that made it appear as though a physician, and not OHM, was submitting the information. Moreover, OHM also submitted prior authorization requests to insurers, including Medicare Part D plans, that contained false information. For example, OHM staff filled out and submitted dozens of Evzio prior authorization request forms that falsely asserted that patients had previously tried and failed to successfully use Narcan or naloxone.

In connection with the resolution, Benzer entered into an integrity agreement (IA) with the U.S. Department of Health & Human Services Office of Inspector General (HHS-OIG). The IA requires, among other things, that Benzer implement measures to ensure that its submission of claims for pharmaceutical products complies with applicable law relating to prior authorizations.

The civil settlement concludes the government’s resolution of claims brought under the qui tam or whistleblower provisions of the False Claims Act by a former employee of kaleo Inc., Evzio’s manufacturer. The qui tam case is captioned United States ex rel. Socol v. Benzer Pharmacy Holding,

LLC, et al., No. 18-cv-10050-RGS (D. Mass.). As part of the civil resolution, the whistleblower will receive \$285,040 of the civil settlement amount.

In 2021, the U.S. Attorney's Office announced settlements with [kaléo](#) Inc. for \$12.7 million and with [other pharmacies](#) for \$1 million relating to their submission of false claims for Evzio. In 2022, the U.S. Attorney's Office announced a \$1.31 million deferred prosecution agreement and civil settlement with [another pharmacy](#).

United States Attorney Leah B. Foley; Kim Milka, Acting Special Agent in Charge of the Federal Bureau of Investigation, Boston Division; Roberto Coviello, Special Agent in Charge, Health and Human Services-Office of Inspector General; the Department of Defense Criminal Investigative Service; Office of Personnel Management, Office of Inspector General; and the U.S. Postal Service Office of the Inspector General made the announcement.

The matter was handled by Assistant U.S. Attorney Abraham R. George, Chief of the Civil Division, Assistant U.S. Attorney Mackenzie A. Queenin, Chief of the Health Care Fraud Unit and Assistant U.S. Attorney Lauren A. Graber, Deputy Chief of the Narcotics and Money Laundering Unit.

Updated May 16, 2025

Topic

HEALTHCARE FRAUD

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